

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: **SAN MARINO**

Organization or entity responsible for the preparation of the report: **MINISTRY OF EDUCATION AND CULTURE – DEPARTMENT OF EDUCATION**

Name of contact person: **MONICA CAVALLI**

Email and telephone number of contact person: monica.cavalli@pa.sm - ++378 885098

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

✓ **Yes**

No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

Convention ratified on the 2nd March 2020. Decree no. 38

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

✓ **Yes** ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

✓ **No**

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

✓ **Yes** ☐ No

- If yes, please provide reference:

Decree 1 July 2015 no.105; Law 15 March 2015 no. 28; Law 9 September 2014 no.142; Law 21 November 1990 no.141;

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

☐ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- ✓ In higher education
- ✓ In adult education and alternative learning

- Please indicate the relevant legal provisions:

Right to education, learning and inclusion (Law 12 °February 1988 no.21)

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Exclusion, any kind of discrimination (Law 12 February 1998 no.21)

☐ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- ✓ In higher education
- In adult education and alternative learning

- Please provide details:

2019 – curricula guidelines

Framework law no.69/2023 on San Marino higher education

☐ Combatting discrimination in terms of curriculum:

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- In higher education

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

In adult education and alternative learning

- Please provide details:

Below some examples of activities against discrimination realised in San Marino schools in the last few years

- Knowledge of the Holocaust, culture of respect for others; - The educational experience of "us" - Educate on the elimination of violence against women.

- Otherness, relationship and cooperation - - Personal and group identity

- Digital security - Prejudice, violence and respect - Emotional education

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

✓ Legislation provides for inclusive education for all

✓ Policy measures aim to enhance inclusion in education for all

✓ Teachers are trained on inclusive education¹⁶ and to value diversity

✓ Multiple and flexible learning pathways¹⁷ are provided for

✓ Curricula and teaching methods are inclusive in design¹⁸

✓ Multilingual and intercultural education is supported

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

- ✓ Initiatives to address discrimination and promote cultural diversity and mutual acceptance

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Law 9 September 2014 n.142 - Legislation regarding specific developmental disorders in school and training settings and Delegated Decree 1 July 2015 n.105 - Regulations on the right to education, instruction, training and scholastic inclusion of people with disabilities

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Concerning students with disabilities, developmental disorders or foreign origins, the main challenge is to provide an effective educational offer, which can be suitable for them and for the whole class. In fact, in San Marino students with disabilities, developmental disorders or foreign origins are fully integrated in the school system with peers of the same age. (no separate classes) Inclusion is possible thanks to special education teachers, who daily assist the students and plan with class teachers inclusive activities. In San Marino almost 9% of all children and students - 0 to 16 y.o. - have been classified as having learning disabilities or impairment and all of them are assisted by special education teachers.

Other relevant general measures, including gender equality

- | | |
|---|--|
| ☐ Legislation provides for gender equality in education | ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☐ Policy measures aim to enhance gender equality | ☐ Re-entry programmes for young mothers are provided for |
| ☐ Gender-responsive education sector planning is undertaken | ☐ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☐ Providing positive or affirmative action measures | ☐ Curricula are rid of all stereotypes ²¹ and bias |
| ☐ Providing financial incentives and fellowships | ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☐ Teachers are trained (initial and in-service) on gender equality | |

²⁰ 'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

☐ Teachers are trained to combat stigmatisation¹⁹

☐ Ensuring gender parity in technical and vocational training education and training (TVET)

☐ Other:

Although the Framework Law on General Rules on Education No. 21/1998 does not directly mention gender equality, it refers to education – art. 1 - as the “right to education and training of every person, without discrimination of any kind and with respect for everyone's freedom and identity”

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

☐ Legislation provides for the right to education of national minorities

☐ Teachers are trained on intercultural education

¹⁹ ‘ Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them’ (Cambridge Dictionary).

²² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: “a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition.”

- | | |
|--|--|
| ☐ Policy measures aim to enhance the right to education of national minorities | ☐ Teachers are trained to combat stigmatisation ²⁴ |
| ☐ Policy elaboration includes consultations with local communities | ☐ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ☐ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☐ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☐ Curricula are rid of all stereotypes ²⁵ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| | ☐ Native language instruction is ensured |

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

²⁶ Supra note 15.

☐ Educational standards are established for educational institutions run by indigenous people

☐ Positive or affirmative action measures are provided for indigenous people

☐ Other:

☐ Adapting curricula and teaching and learning methods to their needs for indigenous people

☐ Curricula are rid of all stereotypes²⁷ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

✓ Legislation provides for their right to education

✓ Policy measures aim to enhance their right to education

✓ Inclusion in mainstream schools is ensured

✓ Positive or affirmative action measures are provided for

✓ All administrative barriers to access education are removed

✓ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers²⁹ are provided for

✓ Teachers are specifically trained to ensure their inclusion

✓ Financial incentives and fellowships are provided for

✓ Auxiliary assistance is provided

☐ Multiple and flexible learning pathways³¹ are provided

✓ Curricula are rid of all stereotypes³² and bias

☐ Accelerated learning programmes are provided

✓ Non-formal and/or alternative education programmes are provided

✓ Language classes to newcomers are provided for

✓ Multilingualism and intercultural education are encouraged

²⁷ Supra note 16.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³¹ Supra note 13

³² Supra note 16.

☐ Teachers are trained to combat stigmatisation³⁰

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Decree-Law No. 41 of 22 March 2022 as amended

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Referring to Ukranian refugees the main challenge was the lack of time. Hosting so many people in such a short time and provide them adequate services in a few weeks was incredibly tough, especially for a small country like San Marino.

People with disabilities:

✓ Legislation provides for their right to education

✓ Policy measures aim to enhance their right to education

✓ Inclusion in mainstream schools is ensured

☐ Special schools are used as resource centers to inclusive schools

☐ Positive or affirmative action measures are provided

☐ Financial incentives and fellowships are provided

☐ Other

✓ Mainstream teachers are specifically trained on disabilities

☐ Teachers are trained to combat stigmatisation³³

✓ Auxiliary assistance is provided

✓ Curricula and teaching and learning methods are adapted

✓ Curricula are rid of all stereotypes³⁴ and bias

✓ Education infrastructure and learning materials are adapted

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

³⁰ Supra note 15.

³³ Supra note 15.

³⁴ Supra note 16.

Law 21 November 1990 no.141 - Framework Law for the Protection of the Rights and Social Integration of People with Disabilities

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

- | | |
|--|--|
| ☐ Financial incentives and fellowships for school enrolment are provided | ☐ Teachers are trained to combat stigmatisation ³⁵ |
| ☐ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ✓ Curricula are rid of all stereotypes ³⁶ and bias |
| ✓ Positive or affirmative action measures are provided | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Law 21/1998-art.1 "...The education and training system, the family and other social subjects with a training value, working together in accordance with the principle of subsidiarity and respecting the autonomy of each sphere and the duties of each institution, protect and promote the growth of the individual and the development of his or her abilities and aptitudes, for an active and responsible inclusion in society. In school, the right to education and training of every person is implemented, without discrimination of any kind and with respect for the freedom and identity of each..."

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

2. Progress made with respect to implementing the right to education across all levels and forms of education

³⁵ Supra note 15.

³⁶ Supra note 16.

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- ☐ Prior to pre-primary education, ECCE services are free
 - ☐ Prior to pre-primary education, ECCE services are affordable
 - ☒ ECCE services are accessible on a non-discriminatory basis
- ✓ ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play.

- Please elaborate further on the measures taken:

Law 21/1998-art.1 “...respecting the autonomy of each sphere and the duties of each institution, protect and promote the growth of the individual and the development of his or her abilities and aptitudes, for an active and responsible inclusion in society. In school, the right to education and training of every person is implemented, without discrimination of any kind and with respect for the freedom and identity of each...”

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

✓ Pre-primary education is **not** compulsory.

- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

✓ Pre-primary education is **not** free.

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The cost of the canteen is at expense of the family

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low number of professionally trained educators |
| ☐ Poor quality programmes | ☐ Lack of support to families |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

Age of enrolment: 6. Duration of primary education: 5 years

- Is primary education compulsory and free of charge?

✓ Primary education is compulsory

☐ Primary education is **not** compulsory.

☐ Primary education is free of charge.

✓ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Books are free. The cost of the canteen is at expense of the family

- What challenges were encountered in realizing primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes in: |
| ☐ Issues of equity and inclusion | Foundation literacy |
| ☐ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☐ Other: | Others |
| | ☐ Disparity in learning outcomes |
| | ☐ Low number of professionally trained teachers |

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

Age of enrolment: 11. Duration of lower secondary school: 3 years

- Please provide the age of enrolment and duration of upper secondary education:

Age of enrolment: 14. Duration of lower secondary school: 5 years.

School is compulsory still the age of 16.

- Is lower and upper secondary education compulsory and free of charge?

☒ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

☒ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

☐ Upper secondary education is compulsory.

- ☐ Upper secondary education is **not** compulsory.
- ☐ Upper secondary education is free of charge

✓ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The cost of the books and transport are partially at expense of the family

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes o No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

Law 21/1998 – Art.3

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ✓ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ✓ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

Administrative Regulations:

https://www.unirsm.sm/segreteria-studenti/wp-content/uploads/sites/41/2023/05/040_Decreto_Rettore_Adempimenti_Amm_Vi_Immatricolazioni_e_Iscrizioni_2020.pdf_firmato.pdf

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

Enrolment fees and tuition fees, transport and accommodation are at expense of the family according to their economical resources and to the students’ education achievements.

- What challenges were encountered in realizing higher education?

- ☐ Limited access
- ✓ Low number of professionally trained professors
- ✓ Issues of equity and inclusion

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

☐ Poor quality programmes

☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary

☐ Poor learning outcomes

☐ Other:

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

☐ Provision of education for persons who have not received or completed the whole period of their primary education

☐ Provision of literacy programmes

☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)

☐ Provision of free of charge learning opportunities

☐ Provision of professional training including reskilling and upskilling programmes

☐ Recognition, validation and certification of non-formal and informal learning

☐ Provision of free of charge career guidance and counselling

☒ Lifelong learning entitlements including learning accounts, vouchers, etc.

☐ Other:

- Please elaborate further on the measures taken:

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ✓ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ✓ State monitoring and inspections
- ✓ Health and sanitation
- ✓ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ✓ Infrastructure
- ✓ Curriculum
- ✓ Student-teacher ratio
- ✓ School fees (if relevant)
- ✓ Other

Since 2022 psychologists work in San Marino schools providing support to pupils and teachers.

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☒ Inadequate parental support to education |
| ☒ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Investments and expenditures for Educational high educational standards need big investments. Nowadays parental support to education is not always adequate, making teachers' tasks even more challenging.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☐ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☒ Curriculum includes human rights education.
- ☒ Educational and/or extracurricular activities are organized on human rights education.
- ☐ Other:

Law No.96/2019 “Establishment of the teaching of Ethics, Culture and Society” - 2019 and 2021 Curricula guidelines

- Please elaborate on each of the measures taken:

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

Law 10 March 2015 no. 28 “Framework law for social care, social assistance and people with disabilities right.

Decree 22 January 2021 no.6 - Ratification of the Council of Europe Convention on the Prevention and Combating violence against women and domestic violence

Decree 23 March 2022 n.42 - Accession to the Convention n.190 of the International Labour Organization - Convention on the Elimination of Violence and harassment in the workplace

Decree no.125 of 27 September 2018 - Accession to the Optional Protocol to the Convention on the Rights of the Child

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☐ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. [Please specify:](#)

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

✓ Registration

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

- ✓ State monitoring and inspections
- ✓ Qualifications of teachers
- ✓ Health and sanitation
- ✓ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ✓ Infrastructure
- ✓ Curriculum
- ✓ Student-teacher ratio
- ✓ School fees
- ✓ School closures
- ✓ Other

There are no private institutions at the present time in San Marino

- Please elaborate:

- What challenges were encountered in non-state education provision?

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ☐ Digital technology use in education is provided for in the legal framework.

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

Please indicate the relevant text and provisions:

- ✓ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)
- ✓ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ☐ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ✓ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ✓ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- ☐ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

Law 95/2019 experimentation of Curricular Indications for the San Marino School
Delegate Decree 164/2024 - Provisions for preventing and combating cyberbullying

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|---|
| ✓ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| ✓ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ✓ inadequate safety measures and IT | ✓ Difficulty in regulating the use of digital education solutions |

⁴⁵ Lack of internet connection, basic infrastructure or devices.

support to respond to issues of child online safety or reduce cyber security risks

☐ Other:

✓ Difficulty in sustainably financing digital education solutions at national scale

✓ Lack of digital skills development for meaningful use of digital technology in teaching practice

☐ Disjointed or fragmented solutions that are not centrally systematized or regulated

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

✓ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☐ Monitoring results are made public. Please provide the link:

✓ Monitoring processes are participatory, inclusive and regular.

☐ Sector-wide and multisector approach is adopted to education governance.

☐ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

✓ The decision-making process for the allocation of resources to education is transparent.

☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

- What challenges were encountered in terms of governance?

- ☒ Budgetary constraints
- ☒ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels
- ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment
- ☒ Lack or weakness of monitoring systems – including the lack of reliable data
- ☐ Poor dialogue with teachers’ trade unions
- ☐ Other:

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

Printed on recycled paper